

11. Data Rights; Confidentiality

11.1 Limitation on the Client's Online Payment System Rights. The Client acknowledges and agrees that all Convera web-pages (including service marks, logos and trademarks), the Services, applications, process and systems are the property of Convera (or the applicable Convera Group Company) and protected by copyright law and/or other intellectual property laws. Except as set forth in this clause 11, the Client must not:

- a) reproduce any part(s) thereof in any form;
- b) create any derivative work based thereon, or
- c) incorporate the site into other websites, electronic retrieval systems, publications or otherwise.

Provided the Client agrees to comply with this Agreement, the Client is permitted to view, use, and download a single copy of any web-page(s), (but not any applications, processes or systems) for the purposes of its internal recordkeeping and accounting for transactions.

11.2 Convera's Intellectual Property. The Client acknowledges and agrees that all copyright and other intellectual property rights in and to any deliverables produced by Convera in carrying out any of the Services for the Client (including, but not limited to reports, compilations or databases in any and all media and any promotional materials or promotional sites of a third party) will be the property of Convera (or the applicable Convera Group Company). The Client will be permitted to use such reports, compilations or databases for its own internal business purposes but it must not disclose, disseminate, sell or otherwise make any such deliverables available to any third party whether in whole or in part, without the express written consent of Convera.

11.3 Data Protection.

- a) The Client's personal information is processed under the applicable law by Convera. Convera uses personal information the Client provides to Convera when using Convera products and the Services, as well as other information that is collected or generated during Convera relationship with the Client. This includes information from other services like money transfers, bill and business payments, loyalty or membership program details, historical transactions and marketing choices. This information is used to provide the Client with the Services the Client agreed to and activities like administration, customer service, anti-money laundering duties, validate the Client details, to complete analysis and research, to help prevent and detect fraud, debt and theft recovery, and to help Convera improve its products and services and operations.
- b) Convera may also use, collect from and share with other businesses who work with Convera information from other products and services and convenience and/or rewards programs, which the Client has registered for during the Client's relationship with Convera. Convera will hold and retain the information that the Client gives Convera about another person including the details of any of Client's nominated beneficiary's in order to execute the transaction. It is the Client's obligation to ensure prior to providing this information that the Client has notified and secured authorisation from the other person on Convera use and disclosure of this information as set out in this clause 11.
- c) Convera may transfer information to affiliates in countries other than the country in which the information was originally collected or created, including to affiliates in the United States. Convera may also provide the information to other organisations, that help Convera run its business, if there is a reasonable need, to carry out or aide the payment services, future services, or for any of the reasons or uses set out in this clause 11. Convera may add to information the Client provides with information from available other business or individuals, including information to validate the accuracy of the Client information provided by the Client. Convera may disclose personal information, including without limitation, name, customer ID number, address, transaction patterns and bank account information:
 - i. if required to do so by domestic or foreign law or legal process; or
 - ii. to law enforcement authorities or other government officials (including those in this country, the United States, or elsewhere) for purposes such as detecting, investigating, prosecuting and preventing crimes, including money laundering and related criminal activity, and the recipients may further disclose the information for these and other related purposes.